

record owner(s) pursuant to Section 1255.410, subdivision (b). Plaintiff has deposited in the State Treasury an amount that satisfies the requirements of Code of Civil Procedure sections 1255.010 – 1255.080. The court incorporates by reference the findings outlined in the proposed order for possession of parcels 38575-1, 2, 3, and 4, lodged with the court on April 10, 2026.

8. S-CV-0054972 Dunk N' Run Donuts v. Toyota Motor Sales

The motion for attorneys' fees is continued to be heard on **September 8, 2026 at 8:30 a.m. in Department 32**. The court apologizes to the parties for any inconvenience.

9. S-CV-0055963 Routon, Mariha R v. Lyon dba Taco Bell

Plaintiff is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Approval of PAGA Settlement

Plaintiff moves for approval of the parties' PAGA settlement. The court observes several issues that plaintiff should address prior to the court reaching the substance of the motion.

First, the memorandum of points and authorities refer to a declaration of Lisa Mullins (p. 14:25); however, no declaration of Lisa Mullins was filed together with plaintiff's moving papers. Without this information, there is insufficient information from the settlement administrator for the court to approve the settlement. The court observes, however, on March 6, 2026 plaintiff filed a declaration of Lisa Mullins. Plaintiff should either file the declaration plaintiff referred to in its moving papers or specify that the March 6, 2026 is the declaration plaintiff is referring to.

Second, the amount of litigation costs included in plaintiff's memorandum of points and authorities (\$5,674.59) differs from the amount counsel declares in his declaration (\$5,747.96). Plaintiff does not acknowledge the discrepancy or provide any explanation. Plaintiff should clarify the correct amount of litigations costs being sought and if the amount being sought changes the total net PAGA penalties listed in the memorandum of points and authorities on page 4, line 25, plaintiff should provide an updated calculation.

Third, plaintiff's counsel declares plaintiff submitted its PAGA notice letter to the LWDA on May 29, 2025 but does not provide a copy of that PAGA notice letter either as part of this motion or as an exhibit to the complaint. Plaintiff shall submit a copy of the PAGA notice letter.

Finally, plaintiff's counsel declares he was contemporaneously filing his declaration and settlement to the LWDA's online portal. However, no evidence is provided that plaintiff's counsel actually did so. Plaintiff shall submit updated proof showing that the settlement has been submitted to the LWDA so the court can confirm plaintiff's compliance with Labor Code section 2699(s)(2).

To afford plaintiff the opportunity to address the above-stated issues, the court continues this motion to **September 22, 2026 at 8:30 a.m. in Department 32**. By September 9, 2026, plaintiff shall file and serve a supplemental declaration of counsel with exhibits as appropriate.

10. S-CV-0056043 Hill Top Cntr. v. Kelly Architectural & Planning

Demurrer of Cross-Defendant Hoss Bozorgzad to Cross-Complaint

Cross-defendant Hossein “Hoss” Bozorgzad (“Bozorgzad”) demurs to the cross-complaint in its entirety on the grounds it fails to state any cause of action against him as an individual, and is uncertain, ambiguous and unintelligible. (Code Civ. Proc. § 430.10 (e), (f).) Defendant / cross-complainant Kelly Architecture & Planning, Inc., opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Bozorgzad contends the cross-complaint contains overly conclusory allegations related to his purported alter ego liability. The court has reviewed the cross-complaint in its entirety and finds it sufficiently alleges the requisite elements supporting alter ego liability at the pleading stage. (*See Rutherford Holdings, LLC v. Plaza Del Rey* (2014) 223 Cal.App.4th 221, 236 (abrogated on other grounds).) The demurrer is overruled on this ground.

Bozorgzad separately argues cross-complainant’s third cause of action for fraud by concealment fails to state sufficient facts to constitute a valid cause of action and is uncertain. “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” (*Graham v. Bank of America, N.A.* (2016) 226 Cal.App.4th 594, 606.) The allegations of a fraud claim based on concealment must be stated with specificity. (*Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 878.)

The cross-complaint fails to allege all elements of the fraud claim with necessary